

In re ESTATE OF CAROLYN SILVEIRA

21PR8424

MOTION TO QUASH BUSINESS RECORDS SUBPOENA

This is one of several actions involving the interests of Carolyn Silveira, deceased, and more particularly three parcels of land and roughly \$500,000 in community assets allegedly embezzled. (There is pending before this Court a request to abate or consolidate various actions.) The legal actions relating to this contentious family dispute include:

Case No	Filed	Substance
20FL44567	02/10/20	Carolyn's petition for dissolution of long-term (60 yr) marriage. RFO re spousal support and property control were denied, but Court ordered David to give Carolyn equalizing payments of \$1,200/month. Carolyn died before any ruling on support or community property. Dismissed .
20EA44667	04/09/20	David's petition for protection (EARO) from son-in-law Rodd. Court granted 3 yr RO w/stay away. RO terminated early due to David's passing.
20DV44888	08/24/20	Carolyn's petition for protection (EARO) from David. No TRO. Carolyn died before hearing. Dismissed .
20EA44889	08/24/20	Carolyn's petition for protection (EARO) from daughter Audrey. No TRO. Carolyn died before hearing. Dismissed .
20PR8354	12/15/20	David's petition to probate Carolyn's "lost" will. Dismissed without prejudice due to lack of publication.
21PR8357	01/07/21	David's petition to quiet title, partition and recover property (joined by Audrey, Manuel, and Dominick). Francille and David Jr. objected. Court appointed Andrew Smith to serve as partition referee. The parties appear to be in agreement that partition by sale is warranted. Pending .
21PR8424	08/23/21	David's petition to probate Carolyn's estate, and for letters of administration with will annexed. David and